NEW YORK STATE | Department of Public Service

Three Empire State Plaza, Albany, NY 12223-1350
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September 1, 2023

VIA E-Mail

Hon. Michelle L. Phillips
Secretary to the Commission
NYS Department of Public Service
Three Empire State Plaza
Albany, NY 12223-1350

Re: Case 23-G-0225 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a National Grid NY for Gas Service.

Case 23-G-0226 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation d/b/a National Grid for Gas Service.

Dear Secretary Phillips:

Please accept for filing the non-confidential or redacted copies of the Department of Public Service Staff (Staff) testimony and exhibits in the above-referenced proceedings. Also attached is a full list of Staff's testimonies and exhibits (see, Attachment 1).

Staff will separately provide Administrative Law Judges (ALJs) James A. Costello and Maureen F. Leary, The Brooklyn Union Gas Company d/b/a National Grid NY and KeySpan Gas East Corporation d/b/a National Grid, with copies of the unredacted testimony and exhibits. Although paragraph 23(b) of the Ruling Adopting Protective Order, or Protective Order, issued July 6, 2023, requires any filing party to serve protected material on parties who are entitled to receive such information under the terms of the Protective Order, paragraph 16 provides the Providing Party an option or opportunity to withhold release of protected information to parties, even those who have executed the Protective Agreement. In this instance, the Providing Party of all protected

information is either National Grid NY or National Grid. To that end, Staff will provide any party who is entitled to receive the protected information, i.e., Staff's unredacted testimony and exhibits pending resolution of the Providing Party's opportunity to exercise its option to further protect the information contained in Staff's testimony and exhibits.

Moreover, Staff is not requesting to protect any information as confidential, rather, we are merely recognizing that other parties, specifically National Grid NY and National Grid, have requested confidential protection for certain information referenced in Staff's testimony and exhibits. Pursuant to paragraph 23(a) of the Protective Order, Staff has attached to this letter copies of National Grid NY and National Grid's requests for protection and have indicated in which testimonies the corresponding documents appear (see, Attachment 2).

In addition, at the procedural and technical conferences held on June 14, 2023, you requested that Staff provide any analysis of the major drivers and rate requests in these proceedings. Attached to this letter, you will find two informal reconciliations for each company. The first compares Staff's recommendations to that company's request as of its corrections and updates filing (see, Attachment 3). The second compares Staff's recommendations to existing rates (see, Attachment 4.

Should you have any questions or concerns, please do not hesitate to contact us.

Respectfully submitted,

Nicholas Forst, Esq.

Peter Hilerio, Esq.

Molly Magnis, Esq.

Staff Counsel

CC: Hon. James A. Costello, Administrative Law Judge
Hon. Maureen F. Leary, Administrative Law Judge
Active Party List

ATTACHMENTS

Attachment 1:

Cases 23-G-0225 & 23-G-0226
The Brooklyn Union Gas Company d/b/a National Grid NY
KeySpan Gas East Corporation d/b/a National Grid
Gas Rates

Staff Testimonies & Exhibits filed on September 1, 2023:

1. Staff Policy Panel (SPP): Testimony and Exhibits.
2. Staff Revenue Requirements Panel (SRRP): Testimony and Exhibits.
3. Duah: Testimony and Exhibits (Exhibits are in two files).
4. Staff Pipeline Safety Panel (SPSP): Testimony and Exhibits.
5. Staff Site Investigation and Remediation Panel (SSIRP): Confidential and Non-Confidential Testimony and Exhibits (Confidential and Non-Confidential Exhibits are in three files each).
6. Staff Gas Infrastructure and Operations Panel (SGIOP): Testimony and Exhibits (Exhibits are in eight files).
7. Staff Gas Rates Panel (SGRP): Testimony and Exhibits (certain MS Excel files provided separately).
8. Staff Gas Reliability and Supply Panel (SGRSP): Testimony and Confidential and Non-Confidential Exhibits.
9. Staff Efficiency Panel (SEP): Testimony and Exhibits.
10. Staff Consumer Services Panel (SCSP): Testimony and Confidential and Non-Confidential Exhibits.
11. Staff Information Technology Panel (SITP): Testimony and Confidential and Non-Confidential Exhibits (Confidential Exhibits are in 13 files, and Non-Confidential Exhibits are in 12 files).
12. Darmetko: Testimony and Exhibits (Exhibits are in seven files).
13. Staff Forecasting and Inflation Panel (SFIP): Testimony and Confidential and Non-Confidential Exhibits.

Attachment 2:

List of Confidential Responses:

Staff Site Investigation and Remediation Panel (SSIRP):

- DPS-319
- DPS-321
- DPS-517
- DPS-930
- DPS-946

Staff Gas Reliability and Supply Panel (SGRSP):

- DPS-668

Staff Consumer Services Panel (SCSP):

- DPS-555
- DPS-583

Staff Information Technology Panel (SITP):

- DPS-401
- DPS-403
- DPS-457

Staff Forecasting and Inflation Panel (SFIP):

- DPS-1016

nationalgrid

Kristoffer P. Kiefer, Esq.
Assistant General Counsel
and Director, NY Regulatory

June 5, 2023

Via E-Mail (*recordsaccessofficer@dps.ny.gov*)
Ms. Molly Magnis
Records Access Officer
New York State Department of Public Service
Three Empire State Plaza
Albany, NY 12223-1350

RE: Case 23-G-0225 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a/ National Grid NY for Gas Service

Case 23-G-0226 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corp. d/b/a National Grid for Gas Service

REQUEST FOR TRADE SECRET AND OTHER PROTECTIONS

ATTACHMENTS CONTAIN CONFIDENTIAL MATERIAL

Dear Ms. Magnis:

KeySpan Gas East Corporation d/b/a National Grid ("KEDLI") and The Brooklyn Union Gas Company d/b/a National Grid NY ("KEDNY") (collectively, the "Companies") respectfully request that the information in the attached documents be treated by the Public Service Commission ("Commission") and the Department of Public Service ("DPS") as confidential pursuant to Public Officers Law §§87(2)(d) and 89(5)(a)(1), and the Commission's implementing regulation, 16 NYCRR §6-1.3. The information has been requested by Kristopher Aadahl, Edward Molocznik, and Anthony DiGiacomo of DPS Staff, and it is being provided in response to information requests ("IRs") DPS-319, DPS-321, and DPS-325 issued on May 25, 2023 in the above-referenced cases. If made publicly available, the information in DPS-319 Attachments 3-5 (Confidential) and DPS-325 Attachments 12 and 13 (Confidential) would cause substantial injury to the competitive position of the Companies. The information in DPS-321 is part of confidential settlement agreements. Accordingly, the Companies respectfully request that the attached files be treated as confidential trade secret information and afforded all of the protections against public disclosure available for such information, as provided by law.

The Commission's Rules of Procedure set forth several non-exclusive factors to be considered when judging a request for trade secret protection: i) the extent to which the disclosure would cause unfair economic or competitive damage; ii) the extent to which the information is known by others and can involve similar activities; iii) the worth or value of the information to the person and the person's competitors; iv) the degree of difficulty and the cost of developing the information; v) the ease or difficulty associated with obtaining or duplicating

the information by others without the person's consent; and vi) other statute(s) or regulations specifically excepting the information from disclosure.

The information for which National Grid seeks trade secret protection meets the above standard. The information compiled therein may be of interest to commercial entities the Companies are currently, or may in the future, do business with. To the extent the information becomes public, such disclosure may adversely affect the Companies' ability to negotiate the best possible terms in other commercial transactions and procurements regarding insurance policies. The result could be higher costs of doing business to the detriment of the Companies and their customers. Furthermore, the information is valuable to the Companies for purposes of protecting its ability to evaluate and negotiate future insurance policies. It would also be costly and difficult to recreate the information. In addition, the information in DPS-321 is part of confidential settlement agreements and should not be disclosed.

For the reasons stated above, the Companies respectfully request that the Commission find the attached information exempt from public disclosure and granted confidential trade secret status.

Respectfully submitted,

Kristoffer P. Kiefer

Kristoffer P. Kiefer, Esq.
Assistant General Counsel and Director

Attachments

nationalgrid

Kristoffer P. Kiefer, Esq.
Assistant General Counsel and
Director, NY Regulatory

June 16, 2023

Honorable James A. Costello
Honorable Maureen F. Leary
Administrative Law Judges
New York State Public Service Commission
Empire State Plaza
Agency Building 3
Albany, NY 12223-1350

RE: Case 23-G-0225 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a/ National Grid NY for Gas Service

Case 23-G-0226 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation d/b/a National Grid for Gas Service

REQUEST FOR PROTECTED STATUS
ATTACHMENT CONTAINS PROTECTED INFORMATION

Dear Administrative Law Judges Costello and Leary:

The Brooklyn Union Gas Company d/b/a National Grid NY and KeySpan Gas East Corporation d/b/a National Grid (collectively, the "Companies") hereby submit Attachment 2 (Confidential) to the Companies' response to Department of Public Service ("DPS") Information Request No. DPS-401 (the "Response") in accordance with the draft *Ruling Adopting Protective Order* in the above-referenced proceedings and the Commission's Rules and Regulations implementing provisions of the Public Officers Law, 16 NYCRR §6-1.1, et seq. The Companies request that Attachment 2 of the Response be treated as "Protected Information" as defined in the Protective Order, Public Officers Law, and Commission regulations, and, therefore, exempted from public disclosure.

Attachment 2 to the Response contains confidential trade secret information that the Companies' request to be kept confidential and not made public. The information compiled therein may be of interest to commercial entities the Companies are currently, or may in the future, do business with. To the extent the information becomes public, such disclosure may adversely affect the Companies' ability to negotiate the best possible terms in other commercial transactions and procurements regarding similar IT-solutions. The result could be higher costs of doing business to the detriment of the Companies and their customers. As such the Companies request that Attachment 2 be afforded confidential treatment and exempted from disclosure pursuant to Public Officers Law § 84 and the Commission's implementing regulations, 16 NYCRR § 6-1.1, et seq.

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The Companies have prepared the attached confidential version of Attachment 2, as well as a non-confidential version of the Response, which has been electronically served on the parties in the above-referenced proceeding along with a copy of this request for confidential treatment. Please feel free to contact me if you have any questions regarding the Response or this request. Thank you for your time and attention to this matter.

Respectfully Submitted,

Kristoffer P. Kiefer
Kristoffer P. Kiefer
Assistant General Counsel,
NY Regulatory

nationalgrid

Kristoffer P. Kiefer, Esq.
Assistant General Counsel and
Director, NY Regulatory

June 16, 2023

Honorable James A. Costello
Honorable Maureen F. Leary
Administrative Law Judges
New York State Public Service Commission
Empire State Plaza
Agency Building 3
Albany, NY 12223-1350

RE: Case 23-G-0225 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a/ National Grid NY for Gas Service

Case 23-G-0226 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation d/b/a National Grid for Gas Service

REQUEST FOR PROTECTED STATUS
ATTACHMENT CONTAINS PROTECTED INFORMATION

Dear Administrative Law Judges Costello and Leary:

The Brooklyn Union Gas Company d/b/a National Grid NY and KeySpan Gas East Corporation d/b/a National Grid (collectively, the "Companies") hereby submit Attachment 3 (Confidential) to the Companies' response to Department of Public Service ("DPS") Information Request No. DPS-403 (the "Response") in accordance with the draft *Ruling Adopting Protective Order* in the above-referenced proceedings and the Commission's Rules and Regulations implementing provisions of the Public Officers Law, 16 NYCRR §6-1.1, et seq. The Companies request that Attachment 3 of the Response be treated as "Protected Information" as defined in the Protective Order, Public Officers Law, and Commission regulations, and, therefore, exempted from public disclosure.

Attachment 3 to the Response contains confidential trade secret information that the Companies' request to be kept confidential and not made public. The information compiled therein may be of interest to commercial entities the Companies are currently, or may in the future, do business with. To the extent the information becomes public, such disclosure may adversely affect the Companies' ability to negotiate the best possible terms in other commercial transactions and procurements regarding similar IT-solutions. The result could be higher costs of doing business to the detriment of the Companies and their customers. As such the Companies request that Attachment 3 be afforded confidential treatment and exempted from disclosure pursuant to Public Officers Law § 84 and the Commission's implementing regulations, 16 NYCRR § 6-1.1, et seq.

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The Companies have prepared the attached confidential version of Attachment 3, as well as a redacted non-confidential version of the Attachment and the Response, which have been electronically served on the parties in the above-referenced proceeding along with a copy of this request for confidential treatment. Please feel free to contact me if you have any questions regarding the Response or this request. Thank you for your time and attention to this matter.

Respectfully Submitted,

Kristoffer P. Kiefer
Assistant General Counsel,
NY Regulatory

Kristoffer P. Kiefer, Esq.
Assistant General Counsel and
Director, NY Regulatory

July 21, 2023

VIA E-Mail
Honorable James A. Costello
Honorable Maureen F. Leary
Administrative Law Judges
New York State Public Service Commission
Empire State Plaza
Agency Building 3
Albany, NY 12223-1350

RE:

Case 23-G-0225 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a/ National Grid NY for Gas Service

Case 23-G-0226 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corp. d/b/a National Grid for Gas Service

REQUEST FOR PROTECTED STATUS
RESPONSE CONTAINS PROTECTED INFORMATION

Dear Administrative Law Judges Costello and Leary:

The Brooklyn Union Gas Company d/b/a National Grid NY and KeySpan Gas East Corporation d/b/a National Grid (collectively, the "Companies") hereby request confidential treatment of Attachments 46 and 65-72 (the "Attachments") to the Companies' supplemental response to Information Request No. DPS-457 (the "Response") in accordance with the *Ruling Adopting Protective Order* issued on July 6, 2023 in the above-referenced proceedings. The Companies request that the Attachments be treated as "Protected Information" as defined in the Protective Order and exempted from public disclosure.

The Commission's Rules of Procedure set forth several non-exclusive factors to be considered when judging a request for trade secret protection: i) the extent to which the disclosure would cause unfair economic or competitive damage; ii) the extent to which the information is known by others and can involve similar activities; iii) the worth or value of the information to the person and the person's competitors; iv) the degree of difficulty and the cost of developing the information; v) the ease or difficulty associated with obtaining or duplicating the information by others without the person's consent; and vi) other statute(s) or regulations specifically excepting the information from disclosure.

The Attachments meet the above standard, and the Companies request the confidential, Protected Information be protected from disclosure pursuant to the Protective Order, Public Officers Law §§ 87(2)(f), 86(5) and 89(5)(a)(1-a), and the Commission's implementing

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regulation, 16 NYCRR § 6-1.3, *et seq*. Specifically, the Attachments contain critical infrastructure information regarding systems, assets, places, or things, so vital to the state that the disruption, incapacitation or destruction of such systems, assets, places or things could jeopardize the health, safety, welfare, or security of the state, its residents or its economy.

Please feel free to contact me if you have any questions regarding the Response, the Attachments, or this request for confidential treatment. Thank you for your time and attention to this matter.

Respectfully submitted,

Kristoffer P. Kiefer

Kristoffer P. Kiefer, Esq.
Assistant General Counsel and Director

Attachments

Kristoffer P. Kiefer, Esq.
Assistant General Counsel and
Director, NY Regulatory

July 3, 2023

Honorable James A. Costello
Honorable Maureen F. Leary
Administrative Law Judges
New York State Public Service Commission
Empire State Plaza
Agency Building 3
Albany, NY 12223-1350

RE: Case 23-G-0225 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a/ National Grid NY for Gas Service

Case 23-G-0226 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation d/b/a National Grid for Gas Service

REQUEST FOR PROTECTED STATUS
ATTACHMENT CONTAINS PROTECTED INFORMATION

Dear Administrative Law Judges Costello and Leary:

The Brooklyn Union Gas Company d/b/a National Grid NY and KeySpan Gas East Corporation d/b/a National Grid (collectively, the "Companies") hereby request confidential treatment for Attachments 4 and 5 to the Companies' response to Department of Public Service ("DPS") Information Request No. DPS-517 (the "Response") in accordance with the draft *Ruling Adopting Protective Order* in the above-referenced proceedings and the Commission's Rules and Regulations implementing provisions of the Public Officers Law, 16 NYCRR §6-1.1, et seq. The Companies request that Attachments 4 and 5 of the Response be treated as "Protected Information" as defined in the Protective Order, Public Officers Law, and Commission regulations and, therefore, exempted from public disclosure. Based on the highly confidential nature of these materials, and consistent with past practices for discovery in this area, the Companies have requested an *in camera* review for Attachments 4 and 5. Therefore, these attachments are not included with this request.

Attachment 4 to the Response contains internal risk reviews of the KEDNY and KEDLI SIR programs. Attachment 5 to the Response contains an external review of the Companies SIR programs by Ernst & Young. Disclosure of such information may impair the Companies' ability to fairly complete such internal and external audits to ensure that the programs are operating in compliance and following best practices. This information is commercially sensitive trade secret information and disclosure would impair the Companies' ability to forecast and manage remediation costs. This information is not publicly available and required an investment of substantial resources to compile and develop. Specifically, disclosure of Attachments 4 and 5 could damage National Grid because adverse parties in litigation and commercial interactions

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involving the SIR sites could use the information to harm the competitive position of the Companies during negotiations. Moreover, the Companies worked with an outside consultant to develop the information in Attachment 5, and disclosure could undermine the considerable time and costs spent developing this information. The Companies' therefore request that Attachments 4 and 5 should be subject to confidential treatment and exempted from disclosure pursuant to Public Officers Law § 87 and the Commission's implementing regulations, 16 NYCRR § 6-1.1, *et seq*.

The details and timing of the *in camera* review will be determined in coordination with DPS. Please feel free to contact me if you have any questions regarding the Response or this request. Thank you for your time and attention to this matter.

Respectfully Submitted,

Kristoffer P. Kiefer
Kristoffer P. Kiefer
Assistant General Counsel,
NY Regulatory

Kristoffer P. Kiefer, Esq.
Assistant General Counsel and
Director, NY Regulatory

July 10, 2023

Honorable James A. Costello
Honorable Maureen F. Leary
Administrative Law Judges
New York State Public Service Commission
Empire State Plaza
Agency Building 3
Albany, NY 12223-1350

RE: Case 23-G-0225 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a/ National Grid NY for Gas Service

Case 23-G-0226 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation d/b/a National Grid for Gas Service

REQUEST FOR PROTECTED STATUS
ATTACHMENTS CONTAIN PROTECTED INFORMATION

Dear Administrative Law Judges Costello and Leary:

The Brooklyn Union Gas Company d/b/a National Grid NY and KeySpan Gas East Corporation d/b/a National Grid (collectively, the "Companies") hereby request confidential treatment for the Companies' response to Department of Public Service ("DPS") Information Request Nos. DPS-555 and DPS-583 (the "Responses") in accordance with the *Ruling Adopting Protective Order* issued July 6, 2023 in the above-referenced proceedings and the Commission's Rules and Regulations implementing provisions of the Public Officers Law, 16 NYCRR §6-1.1, *et seq*. The Companies request that Attachments 1 and 2 (Confidential) to DPS-555, as well as the response to DPS-583 and Attachments 1-3 (Confidential) to DPS-583, be treated as "Protected Information" as defined in the Protective Order, Public Officers Law, and Commission regulations and, therefore, exempted from public disclosure. The Companies have also prepared and provided redacted versions of DPS-555 Attachment 2 and the response to DPS-583 to the parties.

Attachment 1 to DPS-555 contains vendor invoices for outreach and education activities undertaken in connection with Companies' Low-to-Moderate Income ("LMI") programs and related National Grid outreach and education activities. The invoices contain per-unit pricing information based upon the Companies' contracts with vendors for goods and services. Likewise, Attachment 2 to DPS-555 contains an excerpt of a summary of vendor deliverables including per-unit pricing information based upon the contract with the vendor.

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DPS-583 contains information pertaining to vendor costs and savings associated with the Companies' proposal to utilize near off-shore Spanish speaking call centers to provide in-language services. DPS-583 Attachment 1 contains financial information and confidential information regarding the response from the vendor, which was submitted by the vendor in accordance with the confidentiality provisions in the Request for Proposal ("RFP"). Similarly, DPS 583 Attachment 2 contains information regarding the pricing model that will be used for the Companies to utilize off-shore Spanish speaking call centers. DPS-583 Attachment 3 contains the RFP for the near off-shoring of Spanish calls.

This information contained in the Responses is commercially sensitive trade secret information. Such pricing information is not widely available, and its public disclosure would likely cause substantial injury to the Companies' competitive position, affecting their ability to negotiate the best possible terms in other commercial transactions and procurements. The result could be higher costs of doing business to the detriment of the Companies and their customers. In addition, this pricing information was provided to the Companies subject to confidentiality provisions established in the RFP process.

For the reasons stated above, the Companies request confidential treatment of the Protected Information. Please contact me if you have any questions regarding the Responses or this request. Thank you for your time and attention to this matter.

Respectfully Submitted,

Kristoffer P. Kiefer

Kristoffer P. Kiefer
Assistant General Counsel,
NY Regulatory

Attachments

Kristoffer P. Kiefer, Esq.
Assistant General Counsel and
Director, NY Regulatory

July 24, 2023

Honorable James A. Costello
Honorable Maureen F. Leary
Administrative Law Judges
New York State Public Service Commission
Empire State Plaza
Agency Building 3
Albany, NY 12223-1350

RE: Case 23-G-0225 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a/ National Grid NY for Gas Service

Case 23-G-0226 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation d/b/a National Grid for Gas Service

REQUEST FOR PROTECTED STATUS
ATTACHMENT CONTAINS PROTECTED INFORMATION

Dear Administrative Law Judges Costello and Leary:

The Brooklyn Union Gas Company d/b/a National Grid NY and KeySpan Gas East Corporation d/b/a National Grid (collectively, the "Companies") hereby request confidential treatment for Attachment 4 to the Companies' response to Department of Public Service ("DPS") Information Request No. DPS-668 (the "Response") in accordance with the *Ruling Adopting Protective Order* (issued July 6, 2023) in the above-referenced proceedings, as well as the Commission's Rules and Regulations implementing provisions of the Public Officers Law, 16 NYCRR §6-1.1, *et seq*. The Companies request that Attachment 4 to the Response be treated as "Protected Information" as defined in the Protective Order, Public Officers Law, and Commission regulations, and, therefore, exempted from public disclosure.

The Commission's Rules of Procedure set forth several non-exclusive factors to be considered when judging a request for trade secret protection: i) the extent to which the disclosure would cause unfair economic or competitive damage; ii) the extent to which the information is known by others and can involve similar activities; iii) the worth or value of the information to the person and the person's competitors; iv) the degree of difficulty and the cost of developing the information; v) the ease or difficulty associated with obtaining or duplicating the information by others without the person's consent; and vi) other statute(s) or regulations specifically excepting the information from disclosure.

The "Protected Information" for which the Companies seek trade secret protection meets the above standard. The information compiled therein may be of interest to commercial entities the Companies are currently, or may in the future, do business with. To the extent the

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information becomes public, such disclosure would likely cause substantial injury to the Companies' competitive position, affecting their ability to negotiate the best possible terms in other commercial transactions. The result could be higher costs of doing business to the detriment of the Companies and their customers. Furthermore, the information is not publicly available, it took time and resources to compile, and it is valuable to the Companies for purposes of protecting their ability to evaluate and negotiate future transactions.

The Companies electronically served the parties in the above-referenced proceeding with a copy of this request for confidential treatment. Please feel free to contact me if you have any questions regarding the Response or this request. Thank you for your time and attention to this matter.

Respectfully Submitted,

Kristoffer P. Kiefer

Kristoffer P. Kiefer
Assistant General Counsel,
NY Regulatory

Attachment

Cullen and Dykman LLP
One Battery Park Plaza, 34th Floor
New York, NY 10004
T: 212.732.2000 | F: 212.742.1219

August 10, 2023

Terrence W. Regan
Partner
Direct Dial: (212) 510-2246
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Honorable James A. Costello
Honorable Maureen F. Leary
Administrative Law Judges
New York State Public Service Commission
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RE: Case 23-G-0225 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a/ National Grid NY for Gas Service

Case 23-G-0226 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation d/b/a National Grid for Gas Service

REQUEST FOR PROTECTED STATUS
ATTACHMENT CONTAINS PROTECTED INFORMATION

Dear Administrative Law Judges Costello and Leary:

The Brooklyn Union Gas Company d/b/a National Grid NY and KeySpan Gas East Corporation d/b/a National Grid (collectively, the "Companies") hereby request confidential treatment for certain portions of the Companies' response to Department of Public Service ("DPS") Information Request No. DPS-930 (the "Response") in accordance with the *Ruling Adopting Protective Order* (issued July 6, 2023) in the above-referenced proceedings, as well as the Commission's Rules and Regulations implementing provisions of the Public Officers Law, 16 NYCRR §6-1.1, *et seq*. The Companies request that the Response be treated as "Protected Information" as defined in the Protective Order, Public Officers Law, and Commission regulations, and, therefore, exempted from public disclosure.

The Commission's Rules of Procedure set forth several non-exclusive factors to be considered when judging a request for trade secret protection: i) the extent to which the disclosure would cause unfair economic or competitive damage; ii) the extent to which the information is known by others and can involve similar activities; iii) the worth or value of the information to the person and the person's competitors; iv) the degree of difficulty and the cost of developing the information; v) the ease or difficulty associated with obtaining or duplicating the information by

others without the person's consent; and vi) other statute(s) or regulations specifically excepting the information from disclosure.

The "Protected Information" for which the Companies seek trade secret protection meets the above standard. The information provided therein includes commercially sensitive, trade secret information regarding cost sharing measures and agreements negotiated by the Companies, governmental authorities, other potentially responsible parties, and landowners related to the Companies' properties subject to site investigation and remediation ("SIR") requirements. Disclosure of this non-public information would likely cause substantial injury to the Companies' ability to continue to effectively negotiate favorable cost sharing terms for SIR properties and would affect the Companies' ability to manage SIR costs for the benefit of customers.

The Companies electronically served the parties in the above-referenced proceeding with a copy of this request for confidential treatment. Please feel free to contact me if you have any questions regarding the Response or this request. Thank you for your time and attention to this matter.

Respectfully submitted,

Terrence W. Regan

Enclosure

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One Battery Park Plaza, 34th Floor
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August 11, 2023

Terrence W. Regan
Partner
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Honorable James A. Costello
Honorable Maureen F. Leary
Administrative Law Judges
New York State Public Service Commission
Empire State Plaza
Agency Building 3
Albany, NY 12223-1350

RE: Case 23-G-0225 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a/ National Grid NY for Gas Service

Case 23-G-0226 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation d/b/a National Grid for Gas Service

REQUEST FOR PROTECTED STATUS
ATTACHMENT CONTAINS PROTECTED INFORMATION

Dear Administrative Law Judges Costello and Leary:

The Brooklyn Union Gas Company d/b/a National Grid NY and KeySpan Gas East Corporation d/b/a National Grid (collectively, the "Companies") hereby request confidential treatment for certain portions of the Companies' response to Department of Public Service ("DPS") Information Request No. DPS-946 (the "Response") in accordance with the *Ruling Adopting Protective Order* (issued July 6, 2023) in the above-referenced proceedings, as well as the Commission's Rules and Regulations implementing provisions of the Public Officers Law, 16 NYCRR §6-1.1, *et seq*. The Companies request that the Response be treated as "Protected Information" as defined in the Protective Order, Public Officers Law, and Commission regulations, and, therefore, exempted from public disclosure.

The Commission's Rules of Procedure set forth several non-exclusive factors to be considered when judging a request for trade secret protection: i) the extent to which the disclosure would cause unfair economic or competitive damage; ii) the extent to which the information is known by others and can involve similar activities; iii) the worth or value of the information to the person and the person's competitors; iv) the degree of difficulty and the cost of developing the information; v) the ease or difficulty associated with obtaining or duplicating the information by

others without the person's consent; and vi) other statute(s) or regulations specifically excepting the information from disclosure.

The "Protected Information" for which the Companies seek trade secret protection meets the above standard. The information provided therein includes commercially sensitive, trade secret information regarding cost sharing measures and agreements negotiated by the Companies, governmental authorities, other potentially responsible parties, and landowners related to the Companies' properties subject to site investigation and remediation ("SIR") requirements. Further, certain costs related to these SIR properties are subject to pending or potential litigation by the Companies with other potentially responsible parties. Disclosure of this non-public information would likely cause substantial injury to the Companies' ability to continue to effectively litigate and/or negotiate favorable cost sharing terms for SIR properties and would affect the Companies' ability to manage SIR costs for the benefit of customers.

The Companies electronically served the parties in the above-referenced proceeding with a copy of this request for confidential treatment. Please feel free to contact me if you have any questions regarding the Response or this request. Thank you for your time and attention to this matter.

Respectfully submitted,

Terrence W. Regan

Enclosure

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August 30, 2023

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Partner
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Honorable James A. Costello
Honorable Maureen F. Leary
Administrative Law Judges
New York State Public Service Commission
Empire State Plaza
Agency Building 3
Albany, NY 12223-1350

RE: Case 23-G-0225 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a/ National Grid NY for Gas Service

Case 23-G-0226 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation d/b/a National Grid for Gas Service

REQUEST FOR PROTECTED STATUS
ATTACHMENT CONTAINS PROTECTED INFORMATION

Dear Administrative Law Judges Costello and Leary:

The Brooklyn Union Gas Company d/b/a National Grid NY and KeySpan Gas East Corporation d/b/a National Grid (collectively, the "Companies") hereby request confidential treatment for Attachment 1b to the Companies' response to Department of Public Service ("DPS") Information Request No. DPS-1016 (the "Response") in accordance with the *Ruling Adopting Protective Order* (issued July 6, 2023) in the above-referenced proceedings, as well as the Commission's Rules and Regulations implementing provisions of the Public Officers Law, 16 NYCRR §6-1.1, *et seq*. The Companies request that the Attachment to the Response be treated as "Protected Information" as defined in the Protective Order, Public Officers Law, and Commission regulations, and, therefore, exempted from public disclosure.

The Commission's Rules of Procedure set forth several non-exclusive factors to be considered when judging a request for trade secret protection: i) the extent to which the disclosure would cause unfair economic or competitive damage; ii) the extent to which the information is known by others and can involve similar activities; iii) the worth or value of the information to the person and the person's competitors; iv) the degree of difficulty and the cost of developing the information; v) the ease or difficulty associated with obtaining or duplicating the information by

others without the person's consent; and vi) other statute(s) or regulations specifically excepting the information from disclosure. The Commission's rules further define a "trade secret" as "any formula, pattern, device or compilation of information which is used in one's business, and which provides an opportunity to obtain an advantage over competitors who do not know or use it." *See* 16 NYCRR §6-1.3(a).

The "Protected Information" for which the Companies seek trade secret protection meets the above standard. The Attachments contain electronic model inputs supporting the Companies' gas load forecast, which were developed using propriety methods and confidential information and were designed to meet the Companies' specific business and regulatory needs. Further, the Companies expended significant time, effort, and expense to develop the Protected Information. Therefore, the public disclosure of such proprietary information would be a windfall to the Companies' competitors and cause substantial harm to the Companies' competitive position. As such, this commercially sensitive, trade secret information, should be protected from disclosure.

The Companies electronically served the parties in the above-referenced proceeding with a copy of this request for confidential treatment. Please feel free to contact me if you have any questions regarding the Response or this request. Thank you for your time and attention to this matter.

Respectfully submitted,

Terrence W. Regan

Enclosure

Attachment 3:

Brooklyn Union Gas Company
Rate Year Ending March 31, 2025
Company C&U to Staff Direct Testimony
Reconciliation Summary
Case 23-G-0225
($000's)

September 1, 2023

Company C&U			$	466,486
Staff Direct				389,541
Revenues to Reconcile			**$**	**(76,945)**
Reasons for Revenue Requirement Increase	**Rev Req Impact**			
Net Operating Revenues (Net Margin)			**$**	**31,265**
Operating Expenses				
Productivity Adjustment	$	140		
Software		(488)		
Hardware		(653)		
Transportation		(901)		
Savings		(1,972)		
Uncollectible Accounts		(2,327)		
Other Intiatives: FTEs		(3,030)		
Other Intiatives: GIOP&GSP		(3,112)		
Other Intiatives: Other Programs		(4,959)		
Total Labor		(6,017)		
Other Intiatives: IT		(9,795)		
Service Company Rents		(10,131)		
Site Investigation & Remediation Expenses	$	(21,973)		
Total O&M			**$**	**(65,217)**
Depreciation Expense			**$**	**(6,534)**
Taxes Other Than Income Taxes				
Payroll and Other Taxes	$	(460)	**$**	**(460)**
Rate Base				
Accumulated Deferred IT	$	470		
Working Capital		(704)		
EB/Cap Adjustment		(2,263)		
Net Utility Plant		(2,345)		
Total Rate Base			**$**	**(4,842)**
Rate of Return				
(Return On Equity - Company Proposed 9.8% vs. Staff 9.1%)			**$**	**(30,590)**
Miscellaneous - All Other			**$**	**(567)**
Total Revenues Reconciled			**$**	**(76,945)**

Attachment 3:

KeySpan Gas East Corporation
Rate Year Ending March 31, 2025
Company C&U to Staff Direct Testimony
Reconciliation Summary
Case 23-G-0226
($000's)

September 1, 2023

	Rev Req Impact		
Company C&U		$	277,257
Staff Direct			219,859
Revenues to Reconcile		**$**	**(57,398)**
Net Operating Revenues (Net Margin)		**$**	**49,073**
Operating Expenses			
Productivity Adjustment	$ 87		
Hardware	(305)		
Software	(319)		
Uncollectible Accounts	(384)		
Consultants	(680)		
Savings	(1,025)		
Site Investigation & Remediation Expenses	(2,067)		
Other Initiatives: FTEs	(2,275)		
Other Initiatives: GIOP&GSP	(2,607)		
Total Labor	(3,735)		
Other Initiatives: Other Programs	(4,032)		
Other Initiatives: IT	(5,351)		
Service Company Rents	(6,256)		
Total O&M			**(28,948)**
Amortization of Regulatory Deferrals			
Amortization of Net Regulatory Liability		**$**	**(8,426)**
Depreciation Expense		**$**	**(6,470)**
Taxes Other Than Income Taxes			
Payroll and Other Taxes	$ (274)		
Property Taxes	(39,596)		
Total Taxes Other Than Income Taxes		**$**	**(39,870)**
Rate Base			
Accumulated Deferred Income Taxes	$ 308		
EB/Cap Adjustment	(84)		
Working Capital	(318)		
Net Utility Plant	(1,352)		
Total Rate Base		**$**	**(1,446)**
Rate of Return			
(Return On Equity - Company Proposed 9.8% vs. Staff 9.1%)		**$**	**(21,249)**
Miscellaneous - All Other		**$**	**(59)**
Total Revenues Reconciled		**$**	**(57,398)**

Attachment 4:

Brooklyn Union Gas Company
Rate Year Ending March 31, 2025
Existing to Staff Direct Testimony
Reconciliation Summary
Case 23-G-0225
($000's)

September 1, 2023

Revenues to Reconcile			**$**	**389,541**
Reasons for Revenue Requirement Increase	**Rev Req Impact**			
Net Operating Revenues (Net Margin)			**$**	**(8,101)**
Operating Expenses				
Service Company Rents	$	27,413		
Software		15,826		
Other Intiatives: GIOP&GSP		10,648		
Low Income Program		8,820		
Other Intiatives: FTEs		6,253		
Energy Efficiency Program		5,539		
Uncollectible Accounts		(1,941)		
All Other O&M		(2,184)		
Total O&M			**$**	**70,374**
Amortization of Regulatory Deferrals				
Amortization of Net Reg Assets	$	20,418		
Amortization of Unexpended EEPS and ETIP		12,696		
Amortization of Low Income		6,946		
Amortization of Gas Safety NRAs		6,845		
Amortization of Economic Development		385		
Total Amortizations of Regulatory Deferrals			**$**	**47,290**
Depreciation Expense			**$**	**54,225**
Taxes Other Than Income Taxes				
Property Taxes	$	56,919		
Payroll and Other Taxes		2,429		
Total Taxes Other Than income Taxes			**$**	**59,348**
Income Taxes				
FIT - permanent flow thru items	$	(1,029)		
SIT - permanent flow thru items		(1,064)		
Amortization of Excess ADIT		(6,619)		
Total Income Taxes			**$**	**(8,712)**
Rate Base				
Net Utility Plant	$	112,332		
Working Capital		18,356		
EB/Cap Adjustment		15,711		
Regulatory Assets and Liabilities		2,356		
Accumulated Deferred IT		(29,227)		
Total Rate Base			**$**	**119,528**
Rate of Return				
(Return On Equity - Existing 8.8% vs. Proposed 9.1%)			**$**	**55,084**
Miscellaneous - All Other			**$**	**503**
Staff Recommended Revenue Requirement Increase - KEDNY			**$**	**389,541**

Attachment 4:

KeySpan Gas East Corporation
Rate Year Ending March 31, 2025
Existing to Staff Direct Testimony
Reconciliation Summary
Case 23-G-0226
($000's)

September 1, 2023

Revenues to Reconcile			**$**	**219,859**
Reasons for Revenue Requirement Increase	**Rev Req Impact**			
Net Operating Revenues (Net Margin)			**$**	**(10,723)**
Operating Expenses				
Service Company Rents	$	20,404		
Software		8,387		
Other Initiatives: FTEs		4,516		
Energy Efficiency Program		3,396		
Low Income Program		2,153		
Other Initiatives: GIOP&GSP		1,660		
All Other O&M Items		(96)		
Total O&M			**$**	**40,420**
Total Amortization of Regulatory Deferrals				
Amortization of Unexpended EEPS and ETIP	$	2,103		
Amortization of Economic Development		1,118		
Amortization of Net Regulatory Liability		(8,426)		
Total Amortizations of Regulatory Deferrals			**$**	**(5,205)**
Depreciation Expense			**$**	**23,707**
Taxes Other Than Income Taxes				
Property Taxes	$	75,043		
Payroll and Other Taxes		885		
Total Taxes Other Than income Taxes			**$**	**75,928**
Income Taxes				
FIT - permanent flow thru items	$	410		
SIT - permanent flow thru items		153		
Amortization of Excess ADIT		(7,584)		
Total Income Taxes			**$**	**(7,021)**
Rate Base				
Net Utility Plant	$	70,971		
Working Capital		11,483		
EB/Cap Adjustment		8,586		
Regulatory Assets and Liabilities		4,494		
Accumulated Deferred IT		(24,222)		
Total Rate Base			**$**	**71,312**
Rate of Return				
(Return On Equity - Existing 8.8% vs. Proposed 9.1%)			**$**	**31,639**
Miscellaneous - All Other			**$**	**(199)**
Staff Recommended Revenue Requirement Increase - KEDLI			**$**	**219,859**